

SENATE BILL 1589

By Haile

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 38; Title 39 and Title 41, relative to the
Tennessee corrections institute.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 41-4-140(a), is amended by adding the following new subdivisions:

- (6) Establish certification requirements for corrections officers; and
- (7) Inspect and certify local correctional training academies associated with local jails, lock-ups, and workhouses.

SECTION 2. Tennessee Code Annotated, Section 41-4-140, is amended by deleting subsection (d) and substituting:

(d)

(1) A local currently certified facility must not be decertified if the local government has submitted a plan of action within ninety (90) days of the initial annual inspection that is reasonably expected to eliminate fixed ratio deficiencies, staffing emergencies, capital projects, or deficiencies that do not impact the life or safety of the inmates or employees in that facility and cause that facility to remain certified. A plan of action must not:

(A) Exceed five (5) consecutive years without unanimous approval from the board of control;

(B) Exceed twelve (12) months if the board of control determines that reasonable efforts by the local government could have resolved the deficiency; and

(C) Be approved for deficiencies that directly impact the safety and security of the facility or public welfare.

(2) The board of control may direct the executive director to consult with necessary state agencies to ensure the safety and security of the facility prior to approving an extension exceeding five (5) years.

SECTION 3. Tennessee Code Annotated, Section 41-7-106, is amended by adding the following new subsections:

(j) The board is authorized to establish uniform standards for the training of corrections recruits and corrections officers, including requirements for corrections officer certification, continued certification, and revocation of certification.

(k) The board is authorized to establish uniform standards for the certification of local correctional training academies for the purpose of training corrections recruits and corrections officers.

(l) The board may issue, or revoke as required, special certifications to persons who, by reason of experience and completion of in-service training, advanced education, or specialized training, are especially qualified for particular aspects or classes relevant to the corrections profession.

SECTION 4. Tennessee Code Annotated, Section 39-17-1315(a)(1)(A), is amended by adding the following as a new subdivision (a)(1)(A)(iv) and redesignating the existing subdivision (a)(1)(A)(iv) as subdivision (a)(1)(A)(v):

(iv) Any director or full-time employee of the Tennessee corrections institute in the performance of the director or employee's duty; or

SECTION 5. This act takes effect July 1, 2026, the public welfare requiring it.